City of Livermore
1052 S. Livermore Avenue
Livermore, CA 94550

Purchase Order

THIS NUMBER MUST APPEAR ON ALL INVOICES, PACKAGES, AND SHIPPING PAPERS.

Purchase Order Number	**00026042**
Purchase Order Date	**08/07/2025**
Department	**WATER**

Bill To
Reference Ship To Address

Ship To
City of Livermore - Water
Attn: Kevin Kolte
101 West Jack London Blvd
Livermore, CA 94551

Vendor 101350
PIVOT INTERIORS
3355 SCOTT BLVD SUITE 110
SANTA CLARA, CA 95054

VENDOR PHONE NUMBER	VENDOR EMAIL	VENDOR NUMBER	REQUISITION NUMBER	BUYER NAME	DELIVERY REFERENCE
925-734-3601		101350	26063	Jennifer James	

NOTES

WRD -Water Building Desking and Storage System

The Above Purchase Order Number Must Appear On All Correspondence - Packing Sheets And Bills Of Lading

Required Commercial General Liability:
Minimum Limits $1,000,000 per Occurrence/$2,000,000 Aggregate - ISO Form CG 00 01
Required Automobile Liability:
Minimum Limits $1,000,000 per Accident - ISO Form CA 00 01
Required Workers' Compensation:
Statutory Limits and Employer's Liability: Minimum Limit per Accident: $1,000,000 - As Required by California
Vendor shall supply the City of Livermore Water Resources Department will all items listed on quote 429197-01.
All items shall remain the same as quoted. No changes can be made without change order in place.
Pricing based on the Omnia Partners Municipal Contract #: 2020000622, Contract Period: 01/30/2020-12/31/2025.
Purchase order not to exceed $16,491.22.

ITEM #	DESCRIPTION	QUANTITY	UOM	UNIT PRICE	EXTENDED PRICE
1	WRD -Water Building Herman Miller Desking and Storage System for Management Analyst office. This purchase is under the terms and pricing of the Omnia Partners Municipal Contract #: 2020000622, Ship Email:krkolte@LivermoreCA.gov GL #: 64067000 - 76300 $16,491.22	1.0000	EACH	$14,958.0200	$14,958.02

Authorized Signature

Total Ext. Price	$14,958.02
Total Sales Tax	$1,533.20
Purchase Order Total	**$16,491.22**

Terms and Conditions

1. NO SUBSTITUTIONS accepted without approval of Purchasing Specialist.
2. Prices must be F.O.B. destination. DO NOT ship collect.
3. The City of Livermore is EXEMPT from payment of FEDERAL EXCISE TAX under Chapter 32, IRS Code. Items are for the exclusive use of the City of Livermore and not for resale unless otherwise stated.
4. The seller assumes all risks in connection with the merchandise ordered until delivery to the City as specified and accepted by the City.
5. Merchandise is subject to inspection and test by the City at the place of destination. If any merchandise is found at any time to be defective or nonconforming, the City, in addition to all other rights, shall have the right, in whole or in part, to reject and return the merchandise at Seller's expense and to receive full credit for it, or to require its replacement without additional cost to the City.
6. The City may terminate this agreement and be relieved of the payment for any consideration if the contractor fails to perform the terms of this contract at the time and in the manner required. In the event of such termination, the City may proceed with the work in any manner deemed proper by the City. The cost to the City shall be deducted from any sum due the contractor under this agreement, and the balance, if any, shall be paid to the contractor upon demand.
7. All materials by purchase order and/or contract must comply with all federal, CAL-OSHA, and local safety rules and regulations.
8. The billing terms/cash discount available to the buyer shall begin on the date of acceptance of the merchandise or on the date of receipt of invoice, whichever is later.

Additional Terms for Service Contracts

1. Services by Provider: Provider shall perform services in a manner commensurate with the highest professional standards by qualified and experienced personnel.

2. Independent Parties: Provider and its employees are independent contractors and not employees of the City. Provider is responsible for any required payments on behalf of its insurance or other benefits.
3. Permits & License Compliance: Provider shall maintain all appropriate permits, licenses and certificates that may be required under this contract. Provider shall comply with all federal, state, and local law in its performance under this contract.
4. Termination: If provider fails to perform at the time and in the manner required by this contract, the City may terminate the contract by giving written notice to provider and paying the reasonable and proportionate amount for services already provided.
5. Reports: Every document prepared under this contract is the exclusive property of the City. No information prepared under this contract may be made available to any individual or organization without the City's prior approval.
6. Hold Harmless: Provider shall indemnify, defend, and hold harmless the City, its officers, employees, agents, and volunteers from and against all claims, damages, losses, and expenses, herein, caused in whole or in part by any negligent act or omission of the consultant, subcontractor, anyone directly or indirectly employed by any of them or anyone for whose acts any of them may be liable, except where caused by the sole negligence and willful misconduct of the City.
7. Insurance: Provider shall procure and maintain for the duration of the contract insurance against claims for injuries to persons or damages to property which may arise from or in connection with the performance of the work hereunder by the provider, its agents, representatives, or employees.
8. The General Liability and Auto Liability policies are to contain or be endorsed to name the City, its officers, officials, employees, and designated volunteers as additional insureds respects liability arising out of the activities performed in connection with this contract. The Contractor's coverage shall be primary and shall apply separately to each insured against who claim is made or suit is brought, except with respect to the limits of the insurer's liability. Contractor shall furnish the City original Certificates of Insurance and endorsements (affecting coverage required by this clause) signed by a person authorized to bind coverage on its behalf. Insurance is to be placed with insurers with a current A.M Best rating of not less than A:VII if the insurance company is licensed to do business in the State of California. If not, the insurance company shall have an AM Best rating of not less than A+:X. A waiver of subrogation is required for Workers' Compensation Insurance. The endorsements are to be received and approved by the City before work commences.

Miscellaneous Provisions:

Waiver: City's waiver of a breach of term is not deemed a waiver of any subsequent breach of the same term.

Cost of Litigation: If legal action is necessary to enforce this contract, the prevailing party is entitled to receive all costs and expenses including reasonable attorney's fees and reasonable costs of arbitration or litigation.

Entire Contract: This is the entire contract. Any modification must be in writing and signed by all parties.